

1 ENGROSSED SENATE
2 BILL NO. 2118

By: Hamilton of the Senate

3 and

4 Turner of the House
5

6 An Act relating to counties; amending 19 O.S. 2021,
7 Section 180.43, as amended by Section 4, Chapter 394,
8 O.S.L. 2024 (19 O.S. Supp. 2025, Section 180.43),
9 which relates to county sheriff expenses; authorizing
surplus funds from county sheriff commissary account
to be used for certain purposes; and providing an
effective date.

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12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 1. AMENDATORY 19 O.S. 2021, Section 180.43, as
14 amended by Section 4, Chapter 394, O.S.L. 2024 (19 O.S. Supp. 2025,
15 Section 180.43), is amended to read as follows:

16 Section 180.43. A. Each county sheriff may contract with any
17 public or private entity engaged in the business of transportation
18 of prisoners, the Department of Justice of the United States of
19 America, the Department of Corrections, or any municipality of this
20 state for the feeding, care, housing, and upkeep of federal, state,
21 or municipal prisoners, or alien detainees incarcerated in the
22 county jail. Any funds received pursuant to said contract shall be
23 the funds of the county where the federal, state, or municipal
24 prisoners, or alien detainees are incarcerated and shall be

1 deposited in the Sheriff's Service Fee Account. All purchases made
2 pursuant to the provisions of this subsection shall be made pursuant
3 to the purchasing procedures specified in Sections 1500 through 1507
4 of this title, including the use of blanket purchase orders as
5 provided for in Section 310.8 of Title 62 of the Oklahoma Statutes.
6 The sheriff shall be permitted to expend the funds for capital
7 expenditures. The sheriff shall be permitted to expend any funds in
8 the Sheriff's Service Fee Account for administering expenses for
9 salaries, training, equipment or travel.

10 The claim for said expenses shall be filed with and allowed by
11 the board of county commissioners as other claims. The sheriff
12 shall receive no compensation for said services. The sheriff shall
13 file an annual report with the board of county commissioners not
14 later than January 15 of each year. The State Auditor and Inspector
15 shall conduct an audit of the report as on other public records of
16 the county.

17 B. In lieu of the travel reimbursement or monthly travel
18 allowance provided for by law, the board of county commissioners may
19 purchase and provide for the operation, maintenance, insurance,
20 equipping, and repair of an automobile for each county commissioner
21 to be used in performing the duties of his office. In lieu of the
22 travel reimbursement or monthly travel allowance provided for by
23 law, the board of county commissioners, with the concurrence of the
24 county sheriff, may purchase and provide for the operation,

1 maintenance, insurance, equipping, and repair of automobiles for the
2 use of the sheriff in performing the duties of his office. Any
3 automobile purchased pursuant to the authority granted in this
4 section shall be purchased by competitive bids. The use of any said
5 automobile for private or personal purposes is hereby prohibited.
6 In any county having a population of at least three hundred fifty
7 thousand (350,000), where it is determined by the sheriff to be more
8 economical and advantageous to the county, the sheriff may establish
9 a monthly automobile allowance of not more than Four Hundred Dollars
10 (\$400.00) per month in lieu of the mileage per mile for in-county
11 driving as authorized in this section. Any travel reimbursement
12 other than in-county driving as provided for in this section shall
13 be for actual and necessary expenses as provided for in the State
14 Travel Reimbursement Act. Any person violating the provisions of
15 this subsection, upon conviction, shall be guilty of a misdemeanor
16 and shall be punished by a fine of not more than One Hundred Dollars
17 (\$100.00) or by imprisonment in the county jail for not more than
18 thirty (30) days, or by both said fine and imprisonment, and in
19 addition thereto shall be discharged from county employment.

20 C. The State of Oklahoma hereby declares and states that the
21 increased number of persons impersonating law enforcement officers
22 by making routine traffic stops while using unmarked cars is a
23 threat to the public health and safety of all of the citizens of the
24 State of Oklahoma; therefore it shall be unlawful for any county

1 sheriff, deputy sheriff or reserve deputy sheriff to use any vehicle
2 which is not clearly marked as a law enforcement vehicle for routine
3 traffic enforcement except as provided in Section 12-218 of Title 47
4 of the Oklahoma Statutes. In addition to Section 12-218 of Title 47
5 of the Oklahoma Statutes, the peace officer operating the law
6 enforcement vehicle for routine traffic stops shall be dressed in
7 the official uniform including shoulder patches, badge, and any
8 other identifying insignias normally used by the employing law
9 enforcement agency.

10 D. Each county sheriff may operate, or contract the operation
11 of, a commissary for the benefit of persons lawfully confined in the
12 county jail under the custody of the county sheriff. Any funds
13 received pursuant to said operations shall be the funds of the
14 county where the persons are incarcerated and shall be deposited in
15 the Sheriff's Commissary Account. The sheriff shall be permitted to
16 expend the funds to improve or provide jail services. The sheriff
17 shall be permitted to expend any surplus in the Sheriff's Commissary
18 Account for administering expenses for training equipment, travel ~~or~~
19 for, capital expenditures, jail operations, inmate care, or other
20 jail related expenditures. The claims for expenses shall be filed
21 with and allowed by the board of county commissioners in the same
22 manner as other claims. The sheriff shall receive no compensation
23 for the operation of said commissary. The sheriff shall file an
24 annual report on any said commissary under his or her operation no

1 later than January 15 of each year. The State Auditor and Inspector
2 shall conduct an audit of the report in the same manner as other
3 public records of the county.

4 E. Each county sheriff may operate, or contract the operation
5 of, a telephone system for the benefit of persons lawfully confined
6 in the county jail under the custody of the county sheriff. Any
7 funds received pursuant to said operations shall be the funds of the
8 county where the persons are incarcerated and shall be deposited in
9 the Sheriff's Service Fee Account. Such funds may be expended
10 according to the guidelines previously established for expenditures
11 from the general fund. The claims for expenses shall be filed with
12 and allowed by the board of county commissioners in the same manner
13 as other claims.

14 SECTION 2. This act shall become effective November 1, 2026.

15 Passed the Senate the 26th day of March, 2026.

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Presiding Officer of the Senate

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19 Passed the House of Representatives the ____ day of _____,
20 2026.

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Presiding Officer of the House
of Representatives

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